Chapter One

Understanding Moral and Citizenship/Civic Education

Content

- **Defining Citizenship/Civics, Ethics, Morality**
- **Purposes (Goals and Objectives) of Moral and Citizenship/Civic Education**
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Chapter Objective

- After the successful completion of this chapter, students will be able to:
- Define Citizenship/civic education, ethics and morality.
- Differentiate Moral from Citizenship/Civic education.
- Enumerate and explain the competences of a good citizen and evaluate themselves in line with these competences.
- Use critical thinking/logical reasoning, interpersonal skills and ethical theories to make judgments on moral issues and dilemmas.

Defining Civics, Ethics, Morality

- Moral and Civic/Citizenship education - understood and analyzed in different countries as per their socio-economic and political realities.
- The subject assumed different names and purposes depending on countries' ideologies:
- Right Education - South Africa
- Citizenship Education – US & Germany
- Citizenship and Character Education - Singapore
- Moral and Citizenship Education – Ethiopia; are just a few examples that can be found in the literature.

Citizenship Education

- "*Man is a social and political animal*" – Aristotle
- **Civics**: Stems from a Latin word "*civis/ civitas*" meaning citizen.
- Citizen - are legally recognized members of a given state.
- Citizenship - concerned - the legal and political rules governing the relationship between the individual and the state.
- It is an education – concerned - political, economic, cultural, and socio-economic affairs of their country.

- A way - empowering citizens - knowledge - country's constitution, political system, their rights and duties and their contribution to the wellbeing of their country.

How different scholars?

- Patrick (1986) : it is the knowledge of the constitutions, the principles, values, history and application to contemporary life.
- Designed to encourage students to participate actively in democratic life, accepting and exercising their rights and responsibilities.

- UNDP (2004) : It is a way of learning for effective participation in a democratic and development process.
- Aggarwal (1982) : linked civic education to the development of ideas, habits, behaviors and useful attitudes in the individual which enables him to be a useful member of the society.

What Ethics is?

- Stems from the Greek word "*ethos*" – custom or norm of a society.
- A branch of philosophy that attempts to understand people's moral beliefs and actions.

- Studies what constitutes good and bad human conduct, including related actions and values.
- Investigates the principles of governing human actions in terms of their goodness, badness, rightness, and wrongness.
- Though possible to use ‘ethics’ and ‘moral’ interchangeably - traditionally ‘ethics’ described the process of thinking about people’s morality.
- Morality refers to the degree to which an action conforms to a standard or norm of human conduct.

- Considers theories about what human beings are capable of doing, alongside accounts of what they ought to do if they are to live an ethically good life
- It is concerned with discovering the principles that should govern human conduct and with the investigation of normative issues involving value judgments.
- Therefore, ethical education is a way of identifying or distinguishing good codes of conduct from bad codes of conduct, right actions from wrong actions and acceptable behavior from unacceptable behavior.
- The objective of ethical education is to help citizens develop good codes of conduct and behave accordingly in their day-to- day activities.

- Explores the meaning and the ranking of different ethical values, such as honesty, autonomy, equality and justice, and it considers ethical quandaries that human beings face in the course of living their own independent but, also, socially interdependent lives.
- Invariably all ethical questions involve a decision about what one *should do* in a specific instance.
- Ethical questions are not concerned with what one would do (an essentially psychological concern) but what one *ought to* do.

- **Generally, Ethics is:**

1. The critical examination and evaluation of what is good, evil, right and wrong in human conduct (Guy, 2001).

2. A specific set of principles, values and guidelines for a particular group or organization (Guy, 2001).

3. Ethics is the study of goodness, right action and moral responsibility, it asks what choices and ends we ought to pursue and what moral principles should govern our pursuits and choices (Madden, 2000).

- **What is Morality?**

- Morality is a complex concept.
- Literally - Latin - *moralitas* "manner, character, proper behavior"
- Refers to the concept of human action which pertains to matters of right and wrong.
- It relates to values expressed as: a matter of individual choice, those values to which we ought to aspire and those values shared within a culture, **religious**, secular, or philosophical community.
- Socrates "*We are discussing no small matter, but how we ought to live*"
- Living in a multicultural Ethiopia, how we ought to live can be very complicated because of the diversity of culture that is vast and unique.

- It includes the effort to guide one's conduct by reason - to do what there are the best reasons for doing while giving equal weight to the interest of each individual who will be affected by one's conduct.
- It is important that in a countries like Ethiopia, discourse on morality is a goal to ensure harmony and integrity.

Morality is:

1. Those principles and values that actually guide, for better or worse, an individual's personal conduct (Guy, 2001)

2. Morality is the informal system of rational beings by which they govern their behavior in order to lesson harm or evil and do good, this system, although informal, enjoys amazing agreement across time and cultures concerning moral rules, moral ideas and moral virtues (Madden, 2000)

Similarities and Differences of Moral and Citizenship/Civic Education

Citizenship studies the political and legal aspect of the life of an individual citizen where as ethics concerns with the study of the cultural aspect of his/her life.

1. Membership to a certain grouping

- The very essence of both citizenship and morality.
- In civics/citizenship - membership implies the association of an individual citizen to a political and legal community of the highest order, i.e. the state.
- In morality membership denotes the association of an individual into a certain cultural community tied up by common moral and value bonds, whether there is government or not.
- Citizenship tends to focus on the vertical and artificial relation of the individual while ethics studies the horizontal and natural relations.

2. The Issue of Rights and Obligations

- Citizenship entails a set of rights and obligations for individual members thus the violation or respect of which results in some arrangement of punishment or reward by the state.
- Morality is nothing but a list of values standardizing acceptable and unacceptable behaviors and the disposition of the individual by the cultural group.
- Both underscore - individual person is accountable to rights and obligations mostly set and protected by social forces out of his/her control.

3. The Issue of Institutional Protection

- An institution - a sociological establishment and organization of people formed strictly with a degree of executive right to exercise coercive power on the individual in the name of the community.
- Such an institution practices hierarchical structures to apply its control over the behavior of the individual.
- It is commonly responsible to protect Citizenship and moral rights and obligations by applying formal and informal supervisory mechanisms over the individual.
- While the state through the government and all agencies under its control formally regulate citizenship, institutions such as the church, family, neighborhood and others inspect morality and ethical standards informally.

4. The Issue of Interactive Duality

- The list of rights and duties in citizenship are officially communicated, documented, and guarded by full time public institutions in the name of the wellbeing of the state and its people.
- Morality lists recommended prescriptions of good behavior and denounces evil/bad actions as per acceptable standards set by the community but it lacks formality and regularity.
- Despite this duality, however, both citizenship and morality reinforce each other as the political community of citizens is at the same time the cultural community of human beings. … Is that really the case in Ethiopia?
- Nation-State?

- Most legal rules, restrictions and controls over the behaviors of the citizen get their origin from the moral traditions and thoughts of the community.
- For instance, homicide is as seriously punishable crime by the law of citizenship as it is unacceptable and denounced by the moral rule of cultural community.
- This implies that most legal-political rules are justifiably adopted moral standards which are applied to govern individual behavior within a political community.

5. The relative nature of the fields

The relative nature of existing philosophy/outlook of the government :

- Authoritarian or democratic governance
- Excessively authoritarian states - in their politico-legal arrangements, they give individuals the status of subjects - personal and group beliefs, religions, cultures, values and attitudes of rulers become equated with national values and moral standards with a wide coverage on the media and the national education system.

The Relative Nature of Levels of Citizenship and Moral Awareness of Citizens:

- Citizens' level of awareness about fundamental civic and moral values also shapes the relative nature of **citizenship and morality.**

A) ***Level of Income***

- ***Upper class society*** **-** tend to be conservative - political and moral dispositions - strongly need to see only little or no change of the statuesque - political, moral, legal and social setting.
- Need a great degree of national stability and political predictability - maintain their unchallenged advantages.

- Remarkably nationalistic - maximum loyalty to the state and the constitution - guarantee them peace and protection - property and wealth.
- Close to politics and government - keen interest areas of government policy - greatly affect their civic and moral positions within the state.
- Policies of taxation, inflation, labor, environment and foreign relations in general.
- **The *Middle class society:*** highly dynamic, vibrant, participatory and active social group for it consists of probably young, professional, ambitious and liberal section of the society.
- Successfully led the bourgeois revolutions in Western Europe that transformed society into a capitalist socio-economic and political community

- ***Lower class society :*** largest section - annual income is extremely low - scarcely interested at what is going on within the national and regional governments.
- Hardly tuned to the media nor do they seek to access almost all information sources – generally law abiding citizens.
- Politics is too complex, elusive, and unmanageable for them hence they want to free of it
- Extremely marginalized from the main stream of politics and moral debates

b) Civic Culture

- **Civic culture** is generally defined as a trend (of behaviors, attitudes and orientations) among citizens to be concerned with political processes and being efficacious in the political climate.
- *Participatory, passive/subject or parochial* civic culture
- ***Participant citizens*** - good general knowledge and understanding about policies and government activities - assertive on civic participations.
- Significant - participant citizens - politics has been found to be stable, civilized and predictable though dynamic.
- ***Subjects' passive civic culture*** - inconsistent interest in politics - their private conditions are too good to be concerned about politics or they have largely poor general knowledge and understanding about national politics.

- ***Parochial civic culture*** - neither have the knowledge about political developments at national level nor the interest to participate at any level and agenda of discussion.
- Parochials are largely self-marginalized from politics unusually due to their day-to-day concern to win their daily bread which they feel has no relations with (politics):

Ethics and Law

- As different from morals and ethics, laws are norms, formally approved by state, power or national or international political bodies.
- However, there are several reasons why ethics is not law.
- First, some actions that are illegal may not be unethical.
- Second, some actions that are unethical may not be illegal.
- Third, laws can be unethical or immoral.
- Fourth, we use different kinds of mechanisms to express, teach, inculcate, and enforce laws and ethics.

- Laws are expressed publicly in statutes, penal codes, court rulings, government regulations, and so forth.
- Although ethics and morals are sometimes made explicit in religious texts, professional codes of conduct, or philosophical writings, many ethical and moral standards are implicit.
- Finally, we use the coercive power of government to enforce laws.
- People who break certain laws can be fined, imprisoned, or executed.
- People who violate ethical or moral standards do not face these kinds of punishments unless their actions also violate laws.
- Often we "punish" people who disobey moral or ethical obligations by simply expressing our disapproval or by condemning the behavior.

3.
Purposes (Goals and Objectives) Of Civics and Ethics

- **Civic knowledge** refers to basic concepts and principles about government and politics.
- **Civic skills** refer to the intellectual and participatory ability of citizens to monitor and influence public policies and decisions.
- **Civic virtue** refers to dispositions and commitment of citizens that are essential for the maintenance and development of democratic government.
- **Civic competence** is the capability of citizens to participate effectively in the political as well as social systems to influence decisions adopted by the government of their country.

- Moral and Citizenship/Civic Education is based on and seeks to promote in students core moral, ethical, democratic, and educational values, such as:
- Respect for life
- Respect for reasoning
- Fairness
- Concern for the welfare of others
- Respect for diversity
- Peaceful resolution of conflict
- Generally, the ultimate goals of teaching Moral and Citizenship/Civic education are aimed at maintaining and promoting the healthy conditions of the body politic through active participation of citizens.

- Body politic refers to the overall social structures, institutions (governmental and non-governmental), norms, values and the possible interactions of the people in a definite territory.

The Sources (Foundations) and Interdisciplinary Nature of Citizenship and Ethics

I. Subject (disciplinary) Sources:

- **Political Science:** Political science is an academic discipline which focuses on government and politics.
- Areas such as power, authority, legitimacy, the process of decision-making, distribution of political power, political ideologies, political culture, political interaction among interest groups and political parties, institutions of politics and functions of the political system.

- **International Relations**: is the study of relations between two or more than two entities at the international level.
- It refers to all activities of the state that are concerned with its external affairs.
- International relations contribute to Citizenship and ethical education by helping citizens to be familiarized with various global issues such as terrorism, HIV/AIDS, poverty, rapid population growth, environment, the way the international system operates, major international organizations and their functions, foreign policy of the state, and actors in the international system vis-à-vis state's national interests.

- **Philosophy**: is a universal science, which deals with the ultimate causes of all things in a rational and critical manner.
- It deals with all aspects of reality such as the nature of knowledge, society, politics, and moral values.

Philosophy tries to answer questions such as:

- What is the ultimate source of reality? This is studied under metaphysics (theory of being).
- What is good, what is evil and how good is attained, and evil is avoided? This is dealt under ethics.
- What is truth and source of knowledge? This is studied under epistemology.
- What is being human and where is the place of human being in the universe? This is studied by political philosophy.
- Hence, philosophy contributes to civics and ethical education by providing knowledge on various areas that are necessary to cultivate good citizens.

- **History, Economics, Sociology, and Geography**

1. **Documentary Sources:**

- This category of sources includes international agreements, constitutions (written and unwritten) decisions and enactments of legal bodies, historical resources, photographs, films, etc.

a. International enactments: These are group of documents that refer to the decisions of the *United Nations including the Universal Declaration of Human Rights (UDHR), which was adopted in 1948, the Convention on the Right of Child, the Convention on All Forms of Discrimination Against Women (1979), and the Convention on Refugee and Stateless Person (1951).*
b. Constitution: is the supreme law of the land. It can be written or unwritten that specifies the political structure, power distribution, functions of government and the rights and duties of citizens.
c. Decisions and enactments of legally recognized bodies: the legislative, executive, and judiciary branches of government.
d. These bodies would enact and pass decisions to be implemented such as decrees, proclamations and declarations.

Chapter Two

Conceptualizing Ethics: a Philosophical Discourse

Definition

- Ethics - moral philosophy – branch of philosophy that addresses questions about morality—that is, concepts such as good and evil, right and wrong, virtue and vice, justice, etc.
- It involves systematizing, defending, and recommending concepts of right and wrong behavior.
- Stems from the Latin word *Ethos* which refers to *customs* and *norms* of society that has to be respected by every individual.
- These ideals of the *ethos* demand immediate and unquestionable obedience because they are respected values of society.
- Ethics, however, is not guided by values that are not rationally justified.
- Thus, Ethics is not about unquestionable obedience, rather it is a matter of basing ethical values in rational arguments.

- Among the different replies people would answer to “what is ethics”:
- "Ethics has to do with what my feelings tell me is right or wrong."
- "Ethics has to do with my religious beliefs."
- "Being ethical is doing what the law requires."
- "Ethics consists of the standards of behavior our society accepts."
- These replies might be typical of our own.
- The meaning of "ethics" is hard to pin down, and the views many people have about ethics are shaky.

- First - many people - equate ethics - feelings.
- But being ethical is clearly not a matter of following one's feelings.
- A person following his or her feelings may recoil from doing what is right - feelings frequently deviate from what is ethical.
- Nor should one identify ethics with religion. - most religions - advocate high ethical standards.
- Yet if ethics - confined to religion – It would only be applied only to religious people.
- But ethics applies as much to the behavior of the atheist as to that of the saint.

- Thus, Ethics - cannot be confined to religion nor is it the same as religion.
- Being ethical is also not the same as following the law.
- Laws - often incorporates ethical standards - most citizens subscribe.
- But laws, like feelings, can deviate from what is ethical.
- Slavery, colonialism, holocaust, apartheid – all were legal but not ethical.
- Finally, being ethical is not the same as doing "whatever society accepts."

- In any society, most people accept standards that are, in fact, ethical.
- But standards of behavior in society can deviate from what is ethical.
- An entire society can become ethically corrupt.
- Nazi Germany is a good example of a morally corrupt society.
- What, then, is ethics? Ethics is two things.
- First, ethics - well based standards of right and wrong that prescribe what humans ought to do - in terms of rights, obligations, benefits to society, fairness, or specific virtues.

- Ethics, for instance – about those standards - impose the reasonable distance against vices such as rape, stealing, murder, assault, slander, and fraud.
- Ethical standards - include those that enjoin virtues of honesty, compassion, and loyalty.
- Ethical standards – includes rights, such as the right to life, the right to freedom from injury, and the right to privacy.
- Such standards are adequate standards of ethics because they are supported by consistent and well-founded reasons.

- Secondly, ethics refers to the study and development of one's ethical standards.
- Feelings, laws, and social norms can deviate from what is ethical.
- It is necessary to constantly examine one's standards to ensure that they are reasonable and well-founded.
- Thus, ethics also mean the continuous effort of studying our own moral beliefs and our moral conduct, and striving to ensure that we, and the institutions we help to shape, live up to standards that are reasonable and solidly based.

Approaches of Ethics

I. Metaethics

- "Meta" - *after* or *beyond*,
- Metaethics involves a bird's-eye-view of the entire project of ethics.
- Metaethics - study of the origin and meaning of ethical concepts.
- The least precisely defined area of moral philosophy.
- It covers issues from moral semantics to moral epistemology.
- Two issues –

(1) *metaphysical* issues - concerning whether morality exists independently of humans, and

(2) *psychological* issues - concerning the underlying mental basis of our moral judgments and conduct.

- Meta-ethics - seeks to understand the nature of ethical properties, and ethical statements, attitudes, and judgments.

Metaphysical Issues: Objectivism/Universalism and Subjectivism/Relativism

- Metaphysics - study of the kinds of things that exist in the universe.
- The metaphysical component of metaethics involves discovering specifically whether moral values are eternal truths that exist in a spirit-like realm, or simply human conventions.
- Two types : Universalism (Other worldly) and Relativism (This Worldly).

i. Objectivism (Universalism)

- Moral values are objective - exist in a spirit-like realm beyond subjective human conventions.
- Are absolute, or eternal - never change,
- Universal - apply to all rational creatures around the world and throughout time.
- Plato - inspired by the field of mathematics - 1+1=2 - timeless concepts that never change, and apply everywhere in the universe.
- Humans do not invent numbers, and humans cannot alter them.
- Plato explained the eternal character of mathematics by stating that they are abstract entities that exist in a spirit-like realm.

- Moral values also are absolute truths and thus are also abstract, spirit-like entities.
- In this sense, for Plato, moral values are spiritual *objects*.
- Divine commands - A different other-worldly approach to the metaphysical status of morality - Sometimes called *voluntarism* - inspired by the notion of an all-powerful God, who is in control of everything – Morality is issuing from God's will.
- God simply wills things, and they become reality.
- God wills the physical world into existence, He wills human life into existence and, similarly, He wills all moral values into existence.
- God informs humans of these commands by implanting us with moral intuitions or revealing these commands in scripture.

ii. Relativism (Subjectivism)

- The *this-worldly* approach - follows in the skeptical philosophical tradition - Sextus Empiricus - denies the objective status of moral values.
- Technically, skeptics did not reject moral values themselves, but only denied that values exist as spirit-like objects, or as divine commands in the mind of God.
- Moral values - strictly human inventions, a position that has since been called moral relativism.
- Two types: individual relativism and cultural relativism
- The former one - holds that individual people create their own moral standards.

- It is when individual men and women believe that their moral compass is superior to another.
- It is when people do what they think is right in their own hearts.
- Friedrich Nietzsche - there is no objective standard to any form of morality - argued that the superhuman creates his or her morality distinct from and in reaction to the slave-like value system of the masses.
- The superman is a man who lives by his own rules and therefore does not follow the crowd.
- **Übermensch** means man should strive for kind of existence not driven by desire of pleasure and pain.

- Pleasure and pain are part of human experience.
- The overman - should strive for existence above this sensation.
- As far as the "god is died" Nietzsche meant that society's loss of religious commitment had which led to the "death" of God.
- Religion was, and continues to be the deciding factor in which most persons base their morality and, for all practical purposes, their perception of life's "meaning.“
- Without the presence of this God, it would be natural for man to lose his sense of self, purpose and moral direction.
- *“Man is condemned to be free.”* Jean-Paul Sartre (1948)

- The second is *cultural relativism* - maintains that morality is grounded in the approval of one's society – and not simply in the preferences of individual people.
- Sextus, Michel Montaigne and William Graham Sumner - deny the absolute and universal nature of morality and hold instead that moral values in fact change from society to society throughout time and throughout the world.
- Cite examples of values that differ dramatically from one culture to another, such as attitudes about polygamy, homosexuality and human sacrifice.

- All beliefs, customs, and ethics are relative to the individual within his own social context.
- “Right” and “wrong” are culture-specific.
- What is considered moral in one society may be considered immoral in another, and, since no universal standard of morality exists, no one has the right to judge another society’s customs.
- All cultures are worthy in their own right and are of equal value.
- All cultures are considered to be equally legitimate expressions of human existence, to be studied from a purely neutral perspective.
- Truth - variable and not absolute.

- What constitutes right and wrong is determined solely by or by society.
- Since truth is not objective, there can be no objective standard which applies to all cultures
- No culture is superior to any other culture when comparing systems of morality, law, politics, etc.
- All cultural beliefs - equally valid - truth itself is relative, depending on the cultural environment.
- All religious, ethical, aesthetic, and political beliefs are completely relative to the individual within a cultural identity.

Psychological Issues in Metaethics

- Psychological basis of our moral judgments and conduct, particularly understanding what motivates us to be moral.
- "Why be moral?"
- Some answers to the question "Why be moral?" are to avoid punishment, to gain praise, to attain happiness, to be dignified, or to fit in with society.

i. Egoism and Altruism

- Egoism: Psychological motive - inherent selfishness of humans.
- Thomas Hobbes - many, if not all, of our actions are prompted by selfish desires.

- Even if an action seems selfless, such as donating to charity, there are still selfish causes for this, such as experiencing power over other people.
- *Psychological egoism* - maintains that self-oriented interests ultimately motivate all human actions.
- Psychological hedonism - pleasure is the specific driving force behind all of our actions.
- Joseph Butler – argued that instinctive selfishness and pleasure prompt much of our conduct.
- Butler also argued that we also have an inherent psychological capacity to show benevolence to others.
- Psychological altruism - maintains that at least some of our actions are motivated by instinctive benevolence.

ii. Emotion and Reason

- A dispute concerning the role of reason in motivating moral actions.
- If, for example, I make the statement "abortion is morally wrong," am I making a rational assessment or only expressing my feelings?
- David Hume argued that moral assessments involve our emotions, and not our reason.
- We need a distinctly emotional reaction in order to make a moral pronouncement.
- Reason might be of service in giving us the relevant data, but, in Hume's words, "reason is, and ought to be, the slave of the passions."

- Others argued that moral assessments are indeed acts of reason.
- Immanuel Kant - although emotional factors often do influence our - true moral action is motivated only by reason when it is free from emotions and desires.
- Kurt Baier (1958) - proposed in direct opposition to the emotivist tradition - focuses more broadly on the reasoning and argumentation process that takes place when making moral choices.
- If I claim that it is wrong to steal someone's car, then I should be able to justify my claim with some kind of argument.

- For example, I could argue that stealing Henok's car is wrong since this would upset him, violate his ownership rights, or put the thief at risk of getting caught.
- Baier - proper moral decision making involves giving the best reasons in support of one course of action versus another.
- All of our moral choices are, or at least can be, backed by some reason or justification.

iii. Male and Female Morality

- Whether there is a distinctly female approach to ethics - grounded in the psychological differences between men and women.
- Two claims: (1) traditional morality is male-centered, and (2) there is a unique female perspective of the world which can be shaped into a value theory.
- Feminist philosophers - traditional morality is male-centered - modeled after practices - traditionally male-dominated - acquiring property, engaging in business contracts, and governing societies.
- The rigid systems of rules required for trade and government were then taken as models for the creation of equally rigid systems of moral rules, such as lists of rights and duties.

- Women, by contrast - traditionally had a nurturing role by raising children and overseeing domestic life - less rule following, and more spontaneous and creative action.
- Using the woman's experience as a model for moral theory, then, the basis of morality would be spontaneously caring for others as would be appropriate in each unique circumstance.
- On this model, the agent becomes part of the situation and acts caringly within that context.
- This stands in contrast with male-modeled morality where the agent is a mechanical actor who performs his required duty, but can remain distanced from and unaffected by the situation.
- A care-based approach to morality, as it is sometimes called, is offered by feminist ethicists as either a replacement for or a supplement to traditional male-modeled moral systems.

Normative Ethics

- It is about how to determine ethical values.
- It deals with what the population should believe to be right and wrong.
- Because it examines standards for the rightness and wrongness of actions - normative ethics is **distinct** from meta-ethics, which studies the nature of moral statements, and from applied ethics, which places normative rules in practical contexts.
- Involves arriving at moral standards that regulate right and wrong conduct.
- It is a search for an ideal litmus test of proper behavior.

- The key assumption - there is only one ultimate criterion of moral conduct, whether it is a single rule or a set of principles.

Golden Rule

- It is a classic example of a normative principle: "*We should do to others what we would want others to do to us*."
  - It is an example of a normative theory that establishes a single principle against which we judge all actions.
- Other normative theories focus on a ***set* of foundational principles**, or a **set of good character** traits.

Major Ethical Theories

i. Virtue Ethics Theories

- Stresses the importance of developing good habits of character, such as benevolence.
- Historically, virtue theory is one of the **oldest normative traditions** in Western philosophy, having its roots in **ancient Greek civilization**.
- Plato emphasized four virtues in particular, which were later called ***cardinal virtues***: **wisdom, courage, temperance and justice**.
- **Wisdom** achieved when reason remained undisturbed by **appetites** and passions and got **convenient condition** to the apprehension of forms than the constant change in daily life experience.

- **Courage** is when the spirited part of the soul is kept **with in limit**; when our passion and drives are governed by **reason**, we exhibit the virtue of courage.
- **Temperance** is when appetites are ruled by reason, the virtue of temperance are exhibited.
- **Justice** is a virtue achieved with the interconnection of the three virtues and the fulfillment of the function of the soul together.
- Other important virtues are fortitude, generosity, self-respect, good temper, and sincerity.
- virtue theorists hold that we should **avoid acquiring bad character** traits, or *vices*, such as cowardice, insensibility, injustice, and vanity.

- Analyzing 11 specific virtues, Aristotle argued that most virtues fall at a mean between more extreme character traits.
- With courage, for example, if I do not have enough courage, I develop the disposition of cowardice, which is a vice.
- If I have too much courage I develop the disposition of rashness which is also a vice.
- According to Aristotle, it is not an easy task to find the perfect mean between extreme character traits.
- In fact, we need assistance from our reason to do this.
- Medieval theologians supplemented Greek lists of virtues with three Christian ones - ***theological virtues***: faith, hope, and charity.

ii. Duty (Deontology) Theories

- Base morality on specific, foundational principles of obligation.
- Sometimes called *deontological*, from the Greek word *deon*, or duty, in view of the foundational nature of our duty or obligation.
- Sometimes called *non-consequentialist* since these principles are obligatory, irrespective of the consequences that might follow from our actions.
- For example, it is wrong *not to care for* our children even if it results in some great benefit, such as financial savings.
- There are four central duty theories.

Major Duty Theories

1. Samuel Pufendorf - classified dozens of duties under three headings: duties to God, duties to oneself, and duties to others.

- Concerning our duties towards God, he argued that there are two kinds: a theoretical duty to know the existence and nature of God, and a practical duty to both inwardly and outwardly worship God.
- Concerning our duties towards oneself, these are also of two sorts: duties of the soul, which involve developing one's skills and talents, and duties of the body, which involve not harming our bodies, as we might through gluttony (greediness) or drunkenness, and not killing oneself.

- Concerning our duties towards others, Pufendorf divides these between absolute duties, which are universally binding on people, and conditional duties, which are the result of contracts between people.
- Absolute duties are of three sorts: avoid wronging others, treat people as equals, and promote the good of others.
- Conditional duties involve various types of agreements; the principal one of which is the duty to keep one's promises.

2. Rights theory: a “right” is a justified claim against another person’s behavior – such as my right to not be harmed by you.

- Rights and duties are reciprocated - the right of one person implies the duties of another person - Correlativity of rights and duties.
- John Locke - the laws of nature mandate that we should not harm anyone’s life, health, liberty or possessions - our natural rights, given to us by God.
- United States Declaration of Independence - Thomas Jefferson recognizes three foundational rights: life, liberty, and the pursuit of happiness.
- Jefferson - we deduce other more specific rights from these, including the rights of property, movement, speech, and religious expression.

- The four features traditionally associated with moral rights:

i. they are natural insofar as they are not invented or created by governments.

ii. they are universal insofar as they do not change from country to country.

iii. they are equal in the sense that rights are the same for all people, irrespective of gender, race, or handicap.

iv. they are inalienable which means that I cannot hand over my rights to another person, such as by selling myself into slavery.

3. Kant - emphasizes a single principle of duty.

- Kant argued that there is a more foundational principle of duty that encompasses our particular duties.
- It is a single, self-evident principle of reason that he calls the "categorical imperative."
- A categorical imperative simply mandates (order commands) an action, irrespective of one's personal desires, such as "You ought to do X."
- Kant gives at least four versions of the categorical imperative, but one is especially direct: "*Treat people as an end, and never as a means to an end*".
- That is, we should always treat people with dignity, and never use them as mere instruments.

- For Kant, we *treat people as an end* whenever our actions toward someone reflect the inherent value of that person.
- By contrast, we treat someone as a means to an end whenever we treat that person as a tool to achieve something else.
- Suicide, for example, would be wrong since I would be treating my life as a means to the alleviation of my misery.
- Kant believes that the morality of all actions can be determined by appealing to *this single principle of duty.*

- 4. W.D. Ross, who emphasizes *prima facie* duties.
- Ross argues that our duties are "part of the fundamental nature of the universe."
- However, Ross's list of duties is much shorter, which he believes reflects our actual moral convictions:
- ***Fidelity*:** the duty to keep promises
- ***Reparation*:** the duty to compensate others when we harm them
- ***Gratitude*:** the duty to thank those who help us
- ***Justice*:** the duty to recognize merit
- ***Beneficence*:** the duty to improve the conditions of others
- ***Self-improvement*:** the duty to improve our virtue and intelligence
- ***Nonmaleficence*:** the duty to not injure others

iii. Consequentialist/Teleological Theories

- It is common for us to determine our moral responsibility by weighing the consequences of our actions.
- Correct moral conduct is determined solely by a cost-benefit analysis of an action's consequences:
  - An action is morally right if the consequences of that action are more favorable than unfavorable.
  - Require that we first tally (count score calculate) both the good and bad consequences of an action.
  - Second, we then determine whether the total good consequences outweigh the total bad consequences.

- Sometimes called *teleological* theories, from the Greek word *telos*, or end, since the end result of the action is the sole determining factor of its morality.
- In fact, the most attractive feature of consequentialism is that it appeals to publicly observable consequences of actions.
- Three subdivisions of consequentialism emerge:

1. ***Ethical Egoism*:** an action is morally right if the consequences of that action are more favorable than unfavorable *only to the agent* performing the action.

***2. Ethical Altruism**:* an action is morally right if the consequences of that action are more favorable than unfavorable *to everyone except the agent*.

3. Utilitarianism: an action is morally right if the consequences of that action are more favorable than unfavorable *to everyone*.

Types of Utilitarianism

- Jeremy Bentham - *act-utilitiarianism & hedonistic utilitarianism*
- *Act-utilitiarianism* - we tally the consequences of each action we perform and thereby determine on a case by case basis whether an action is morally right or wrong.
- *Hedonistic utilitarianism* - we tally the pleasure and pain which results from our actions.
- Critics point out limitations in both of these aspects.
- Act-utilitarianism - morally wrong to waste time on leisure activities such as watching football – we better spent time for a greater social benefit, such as charity work - prohibiting leisure activities doesn't seem reasonable.

- Act-utilitarianism - specific acts of torture or slavery would be morally permissible if the social benefit of these actions outweighed the disadvantages.
- *Rule-utilitarianism* - revised version - addresses these problems.
- Rule-utilitarianism - a behavioral code or rule is morally right if the consequences of adopting that rule are more favorable than unfavorable to everyone.
- Unlike act utilitarianism, which weighs the consequences of each particular action, rule-utilitarianism offers a litmus test only for the morality of moral rules, such as “stealing is wrong.”

- Adopting a rule against theft clearly has more favorable consequences than unfavorable consequences for everyone.
- The same is true for moral rules against lying or murdering.
- Rule-utilitarianism, then, offers a three-tiered method for judging conduct.
- A particular action, such as stealing my neighbor's car, is judged wrong since it violates a moral rule against theft.
- In turn, the rule against theft is morally binding because adopting this rule produces favorable consequences for everyone.
- John Stuart Mill's version of utilitarianism is rule-oriented.

- Hedonistic utilitarianism - pleasurable consequences are the only factors that matter, morally speaking.
- Seems too restrictive since it ignores other morally significant consequences that are not necessarily pleasing or painful.
- For example, acts which foster loyalty and friendship are valued, yet they are not always pleasing.
- George Edward Moore - proposed *ideal utilitarianism*, which involves tallying any consequence that we intuitively recognize as good or bad (and not simply as pleasurable or painful).
- Also, R.M. Hare proposed *preference utilitarianism*, which involves tallying any consequence that fulfills our preferences.

ii. Egoism

- The word "Egoism' comes from Greek word 'ego', 'I' and therefore, literally, 'I-ism'.
- The central concern of egoism is the 'self' as the beginning and of all consideration.
- Self-interest is the nucleus or central for every ethical action or decision.
- What is right and wrong is to be decided on the basis of the interest of every egoist individual.
- Egoism can take two forms, the psychological egoism and the ethical egoism.

1. Psychological Egoism

- The psychological Egoism is motivated out of self-interests and aims at self-satisfaction.
- It is also doctrine about human nature, claiming that everyone by nature *is* motivated primarily by his or her own interests.
- According to psychological egoism, people always seeks one's own advantage or self interest, or always does what he thinks will give him the greatest balance of good over evil.
- This means also that 'self-love' is the only basic "principle" in human nature.

- The ‘ego-satisfaction” is the final aim of all activity or that” the pleasure principle”.
- Self love is the basic ethical principle.

2. Ethical Egoism

- Ethical egoism maintains that each of us *should* look at only at the consequences that affect us.
- It views that each person ought to perform those actions that contribute most to his or her own self-interest.
- It is a theory about what ought to do, how we ought to act as with psychological egoism.

III. Applied Ethics

- Consists of the analysis of specific, controversial moral issues such as abortion, animal rights, or euthanasia.
- Drive-by shooting - is not an applied ethical issue - everyone agrees that this practice is grossly immoral.
- Gun control - an applied ethical issue - significant groups of people both for and against gun control.
- Subdivided into convenient groups (Professional ethics) such as medical ethics, business ethics, and environmental ethics.

- Bioethics - concerned with identifying the **correct approach** to matters such as **euthanasia**, or the allocation of scarce health resources, or the use of human embryos in research.
- Environmental ethics is concerned with questions such as the **duties** of **humans** towards **landscapes or species**.
- Business ethics - **limits** on managers in the pursuit of profit, or the duty of '**whistleblowers**' to the general public as opposed to their employers.
- It is a study which is supposed to involve practitioners as much as **professional philosophers**.
- It is d**istinguished** from normative ethics, which concerns what people **should believe** to be right and wrong, and from meta-ethics, which concerns the **nature** of moral statements.

Issues in Applied Ethics

I. Developmental Ethics

- Development - as equally a **moral issue/concept** as it is political, legal and economic.
- there are a number of development related questions /issues that are worth of discussion and analysis.
  - ✓ In what direction and by what means should a society 'develop'?
  - ✓ What are the moral obligations, if any, of rich societies to poor societies? Etc.
  - ✓ What should be counted as good or bad development?
  - ✓ How should the burdens and benefits of development be distributed?
  - ✓ What are the most serious local, national and international impediments to good development? Etc.

- A moral concern to find out sources for **moral assessment** of theories and practices of development that exist today and thereby prescribing a **morally better way outs** for future development.
- Studying development ethics would be extremely crucial to identify major ***areas of moral consensus and controversy*** on practicing and defining development and eventually develop **shared general parameters** for **ethically based development**.
- a consensus exists also on the fact that development planners should seek strategies in which both human well-being and a healthy environment jointly exist (i.e. the issue of **sustainable development**).
- Development ethics' initial concern was assessing the **development ends** and **means of poor societies** (third world societies).

- Universalists - utilitarians and Kantians, argue that **development goals** and **principles are valid for all societies**.
- Particularists - communitarians and postmodern relativists, however argue that **universalism masks ethnocentrism and (Northern) cultural imperialism**.
- Particularists support what can be called ***procedural* principle** which asserts that each nation or society should grow only on its **own traditions** and decide its own **development ethic and path**.
- The third approach - tries to avoid the extremism - development ethics should forge a **cross-cultural consensus** - society's own freedom to make development choices is one among a plurality of fundamental norms - these norms are of sufficient generality so as not only to permit but also to require sensitivity to societal differences.

II. Environmental Ethics

- It is a branch of ethics that studies the relation of human beings and the environment and how ethics play a role in this.
- Believe that humans are a part of society as well as other living creatures, which includes plants and animals.
- Thus, it is essential that every human being respect and honor this and use morals and ethics when dealing with these creatures.
- It is the discipline that broadly studies the moral relationship of human beings to the environment.
- There are many ethical decisions that human beings make with respect to the environment. For example:

- ✓ Should individuals continue clearing forests for various consumption purposes?
- ✓ Should individuals continue making gasoline powered vehicles?
- ✓ What environmental obligations do individuals need to bear for future generations?

- With a view to develop answers to the above moral questions on environment, three general ethical approaches have emerged over the last 20 years.
- The following technical terms can be used to describe the approaches: *Libertarian Extension, Ecologic Extension and Conservation Ethics.*
- Libertarian extension approach - the value of liberty must be echoed when we deal with environment (i.e., a commitment to extend equal rights to all members of a community).
- Defined community as consist of both **non-humans and humans**.

- **Ecologic extension** approach - emphasis must not be placed on human rights on the recognition of the fundamental interdependence of all biological entities.
- As planet is unified entity the human race alone is of no particular significance in the long run.
- Conservation ethics approach - look at the worth of the environment in terms of its **utility or usefulness to humans**.
- Argues for the preservation of the environment as long as it has **extrinsic value** to humans(it is instrumental to the welfare of human beings).
- Conservation must be understood as a means to an end and purely concerned with **mankind** and intergenerational considerations.
- It is this ethic that has been also widely pronounced at the *Kyoto Environment Summit* of 1997 and the three agreements reached in Rio in 1992.

- **Principles of Environmental Ethics**
- **Duty for future generation**
- **The duty to limit over consumption**
- **The right to (live in) livable environment**
- **The polluter pays principles**

III. Professional Ethics

- *Profession*, - as a systematic way of acquiring and continuous development of a balanced combination of
- 1) **Training** (here to mean a formal, rational, systematized and scheduled activity to transfer knowledge from the trainer and the environment to the trainee),
- 2) **Specialty/expertis**e (here refers to a situation in which the trainee ends up with being an almost irreplaceable one/a referent point in a specific field), and
- 3) **Full time activity and source of livelihood** (to mean that the individual now becomes fully engaged in the application of the knowledge so gained on full time arrangement and that has to be the major source of his/her income).

- *Professional ethics* - ethics that **enables professionals** of different fields to distinguish what is right from what is wrong **using morality as standard of evaluation** and thus judge on their actions and behaviors.
- Professionals are expected to behave and act in accordance with the **codes of conduct each profession demands**.
- It is concerned with the **moral issues** that arise because of the specialized knowledge that professionals attain, and how the use of this knowledge should be governed when providing a service to the public.

Some Selected Fundamental Codes / Principles of Professional Ethics

- ✓ **Punctuality**
- ✓ **Honesty and Integrity**
- ✓ **Confidentiality**
- ✓ **Impartiality (non–Partiality)**
- ✓ **Fairness**
- ✓ **Responsiveness**
- ✓ **Efficiency and Effectiveness**

Chapter Three

Ethical Decision Making and Moral Judgments

- **After reading this chapter, students will be able to:**
- o Identify the moral foundations we base our ethical standards.
- o Understand those standards how they applied to specific situations we face.
- o Identify how good ethical decision made.
- o Understand why we need to be moral.

How Can We Make Ethical Decisions And Actions?

- In real life conditions - difficulties to always do the right thing.
- What we considered as right - put us in difficult condition with others and affect our social relation adversely.
- Individuals could give their own justification to testify that they are Right or correct.
- Let's raise some puzzling questions: What things are good or bad?
- Instrumental good : the **goodness** of things lies in their being instruments towards the attainment of the other things which are considered good.

- Intrinsic good : we value these things (whatever they may turn out to be) not for what they lead to but for what they are.
- Think of the opposite : there are things which are both **instrumentally** and **intrinsically bad**.
- Female Genital Mutilation, early marriage, kidnapping, abduction, Ignorance, and corruption.
- One of the key tasks - ethical reasoning - to analyze and critically consider the values we hold and the claims we **make** in relation to the perceived obligations that we might have towards one another.

- A second key task - to evaluate the adequacy of reasons that we give for our actions.
- Whether the reasons offered to support a particular course of action are based on sound evidence and/or logical argument.
- Ethical values are usually not as easy to understand as other kinds of values.
- It is probably easier to explain the practical value of energy than it is to explain the ethical value of courage.
- It is easier to test a person's blood pressure than it is to determine whether or not they are virtuous.

- Ethical problems mostly are not as **clear** as other kinds of problems and resolving ethical problems definitively may not always possible.
- The aim of ethics – is not to take the high moral ground and tell people what to do, but, rather, to offer tools for thinking about difficult problems.

Ethical Principles and Values of Moral Judgments

- In place of **systematically examined** ethical frameworks - people instead carry around a useful set of day-to-day 'rules of thumb' that influence and govern their behavior.
- Consider the idea killing is wrong.
- Does this mean that capital punishment is wrong? Is it wrong to kill animals? Is killing in self-defence wrong? Is the termination of pregnancy wrong? Is euthanasia wrong? If we try to apply our everyday notions of right and wrong to these questions, straightforward answers are not always forthcoming.

- We need to examine these questions in more detail; and we need theoretical frameworks that can help us to analyze complex problems and to find rational, coherent solutions to those problems.

Moral intuitions and Critical Reasoning

- The study of ethics involves reasoning about our feelings.
- All societies are characterised by their own ethical ideas – expressed in terms of attitudes and beliefs – and their own customs.
- **Philosophical ethics**, however, asks us to take a step back from these influences and instead to reflect critically on our sentiments and attitudes.

Rationalisation

- Studying ethics involves attempting to find valid reasons for the moral arguments that we make.
- Most people already have general ideas – or what philosophers call 'intuitions' or 'presumptions' – about what they think is 'right' or 'wrong'.
- Philosophical approach to ethics requires people to **think critically** about the moral ideas that they hold, to support or refute those ideas with convincing arguments, and to be able to articulate and explain the reasons and assumptions on which those arguments are based.

- A rationalisation occurs when we use what at first glance seem to be rational or credible motives to cover up our true (and perhaps unconscious) motives.
- For example, if a landowner seeks to build a plastic recycling plant and states that this is driven by a desire to create local employment opportunities – whereas in fact their true motive is to make a profit – then this is a rationalisation.

Types of reasoning

- **Three forms of critical reasoning**
- Reasoning by analogy, Inductive reasoning, and Deductive reasoning

- While we may insist that moral principles and decisions should be justified by rational arguments, and thus consideration of **religious arguments** should **not be excluded** from the study of ethics.

Testing moral arguments : Three ways to test a moral argument

- (1) Factual accuracy
- (2) Consistency
- (3) Good will

Fairness and Justice Approach

- Aristotle “equals should be treated equally and unequal’s unequally”.

The basic moral question in this approach is:

- How fair is an action?
- Does it treat everyone in the same way, or does it show favoritism and discrimination?

The Common Good Approach

- John Rawls - common good - "certain general conditions that are equally to everyone's advantage.”
- It focuses on ensuring that the social policies, social systems, institutions, and environments on which we depend are beneficial to all

The Rights Approach

- **Immanuel Kant :** Each person has a fundamental right to be respected and treated as free and equal rational person capable of making his or her own decisions.

Religious Morality

- Religious morality refers to a human being in relationship to a supernatural being or beings.
- 1. I am the Lord, Your God; do not worship false gods.
- 2. Do not take the name of God in vain.
- 3. Keep holy the Sabbath Day.

Individual Morality

- Individual morality refers to individuals in relation to themselves and to an individual code of morality that may or may not be sanctioned by any society or religion.

- A person may or may not perform some particular act, not because society, law, or religion says he may or may not, but because he himself thinks it is right or wrong from within his own conscience.

Social Morality

- Social morality concerns a human being in relation to other human beings.
- It is probably the most important aspect of morality, in that it cuts across all of the other aspects and is found in more ethical systems than any of the others

- Many ethical systems would allow that what he would do to himself is strictly his business, “as long as it doesn’t harm anyone else.”

Moral Judgments

- Moral judgments refer to *deciding what is right and what is wrong in human relations*.
- Moral judgments are :
- **evaluative** because they place value on things or relation or human actions; determine what is right or wrong, good or bad.
- **normative** because they evaluate or assess the moral worth of something based on some **norms or standards**.

- in judging conduct or action we have to consider **motives, means,** and **consequences** and sometimes the **situation.**

What Makes an Action Moral?

- Generally, a moral action is one which:
- Is performed by agents, creatures that are capable of free choice/ free will
- Is the result of intention; the action was done on purpose with a particular motive
- Has a significant consequence on others in respect of harm or benefits it brings about.

Why Should Human Beings Be Moral?

- Asked more simply, “Why be moral?” Among the more common answers are these:

- Behaving morally is a matter of self-respect.
- People won’t like us if we behave immorally.
- Society punishes immoral behavior.
- God tells us to be moral.
- Parents need to be moral role models for their children.

- More specifically, the five social benefits of establishing and following moral rules accomplish the following:
- a) Keep society from falling apart.
- b) Reduce human suffering.
- c) Promote human flourishing.
- d) Resolve conflicts of interest in just and orderly ways.
- e) Assign praise and blame, reward and punishment, and guilt.

Chapter Four

State, Government, and Citizenship

Chapter Objectives

After the successful completion of this chapter, students will be able to:

- Define the terms of state, government, and citizenship.
- Understand the contending theories of state, government and citizenship.
- Discern the rights and duties of citizens' vis-à-vis to the attributes of a good citizenship.
- List and explain the differences and similarities of state, government and citizenship theories.
- Comprehend the weaknesses and strengthens of the various state structures and government systems.
- Enumerate and understand the ways of acquiring and losing citizenship.

Understanding State

- Four Perspectives: idealist, functionalist, an organizational, and an international perspectives.

1. Idealist approach - Hegel - identified three moments of social existence: the family, civil society, and the state.

- Family - a particular altruism operates that encourages people to set aside their own interests for the good of their children or relatives.
- Civil society - a sphere of 'universal egoism' in which individuals place their own interests before those of others.
- State - ethical community underpinned by mutual sympathy – 'universal altruism'.
- Critic - it fosters an uncritical reverence for the state – defines it in ethical terms, fails to distinguish clearly between institutions that are part of the state and those that are outside the state.

2. Functionalist approaches - focus on the role or purpose of state institutions.

- The central function - the maintenance of social order.
- State : set of institutions that uphold order and deliver social stability.
- neo-Marxists - a mechanism through which class conflict is ameliorated to ensure the long-term survival of the capitalist system.
- Critic - it tends to associate any institution that maintains order (such as the family, mass media, trade unions and the church) with the state itself.

3. International approach - views state primarily as an actor on the world stage - basic unit of international politics.

- It has two faces, one looking outwards and the other looking inwards.
- Inward-looking face - relations with the individuals and groups that live within its borders – its ability to maintain domestic order, the international view – the state's outward-looking face - relations with other states - its ability to provide protection against external attack.
- The classic definition of the state in international law - Montevideo Convention on the Rights and Duties of the State (1933) - Article 1 : the state has four features: a defined territory, permanent population, an effective government and sovereignty.
- **Recognition :**

Rival Theories of State

- There are various rival theories of the state, each of which offers a different account of its origins, development and impact on society .

i. **The Pluralist State**

- Very clear liberal lineage.
- It stems from the belief that the state acts as an 'umpire' or 'referee' in society.
- Dominated mainstream political analysis - within the Euro-American thought.
- The origins - social-contract theories - Thomas Hobbes and John Locke.
- The state had arisen out of a voluntary agreement, or **social contract**, made by individuals who recognized that only the establishment of a sovereign power could safeguard them from the insecurity, disorder and brutality of the state of nature
- Without a state, individuals abuse, exploit and enslave one another.

- With a state, order and civilized existence are guaranteed and liberty is protected.
- Locke – "where there is no law there is no freedom".
- The state - neutral arbiter amongst the competing groups and individuals in society
- It acts in the interests of all citizens, and therefore represents the common good or public interest.
- Hobbes - stability and order could be secured only through the establishment of an absolute and unlimited state, with power that could be neither challenged, nor questioned.
- He held that citizens are confronted by a stark choice between absolutism and anarchy.
- Locke, on the other hand, developed a more typically liberal defense of the limited state.

- The purpose of the state is very specific: it is restricted to the defense of a set of 'natural' or God-given individual rights; namely, life, liberty and property.
- Locke - constitutional and representative government.
- These ideas were developed in the twentieth century into the pluralist theory of the state.
- Pluralism - within liberal democracies, power is widely and evenly dispersed.
- The state is neutral.
- The state is not biased in favor of any particular interest or group, and it does not have an interest of its own that is separate from those of society.
- Schwarzmantel (1994) put it, the state is 'the servant of society and not its master'.

ii. The Capitalist State

- Marxists - argued that the state cannot be understood separately from the economic structure of society.
- State is nothing but an instrument of class oppression - emerges out of, and in a sense reflects, the class system.
- Marx - the state is part of a 'superstructure' that is determined or conditioned by the economic 'base', which can be seen as the real foundation of social life.
- The state cannot be understood except in a context of unequal class power, and that the state arises out of, and reflects, capitalist society, by acting either as an instrument of oppression wielded by the dominant class, or, more subtly, as a mechanism through which class antagonisms are ameliorated.
- Marx did not see the state as a necessary or enduring social formation.

- He predicted that, as class antagonisms faded, the state would 'wither away', meaning that a fully communist society would also be stateless.
- Since the state emerged out of the class system, once the class system had been abolished, the state, quite simply, loses its reason for existence.

iii. The Leviathan State

- Associated in modern politics with the New Right - commitment to a radical form of individualism.
- The New Right - neoliberal wing – shows strong antipathy towards state intervention in economic and social life, born out of the belief that the state is parasitic growth that threatens both individual liberty and economic security.
- The state, instead of being, as pluralists suggest, an impartial umpire or arbiter, is an overbearing 'nanny', desperate to interfere or meddle in every aspect of human existence.

- The state pursues interests that are separate from those of society.
- Bureaucratic self-interest invariably supports 'big' government and state intervention, because this leads to an enlargement of the bureaucracy itself, which helps to ensure job security, improve pay, open up promotion prospects and enhance the status of public officials.

iv. The Patriarchal State

- Feminist theory encompasses a range of traditions and perspectives, and has thus generated a range of very different attitudes towards state power.
- Feminists have usually not regarded the nature of state power as a central political issue, preferring instead to concentrate on the deeper structure of male power centered on institutions such as the family and the economic system.

- The idea that the state exercises a monopoly of legitimate violence is compromised by the routine use of violence and intimidation in family and domestic life.
- Radical feminists - state power reflects a deeper structure of oppression in the form of patriarchy.
- There are a number of similarities between Marxist and Radical feminist views of state power.
- Both groups, for example, deny that the state is an autonomous entity bent on the pursuit of its own interests.
- Whereas Marxists place the state in an economic context, radical feminists place it in a context of gender inequality, and insist that it is essentially an institution of male power.

The Role of the State

- Anarchists - dismiss the state as fundamentally evil and unnecessary.
- Most political thinkers have regarded the state as - worthwhile.
- There is profound disagreement about the exact role the state should play, and therefore about the proper balance between the state and civil society.

i. **Minimal states**

- The ideal of classical liberals - individuals enjoy the widest possible realm of freedom.
- Rooted in social-contract theory.
- Advances an essentially 'negative' view of the state.
- The state has the capacity to constrain human behavior and thus to prevent individuals encroaching on the rights and liberties of others.
- The state is merely a protective body, its core function being to provide a framework of peace and social order within which citizens can conduct their lives as they think best.

- The state exists to maintain domestic order.
- It provides protection against external attack.
- The institutional apparatus of a minimal state is thus limited to a police force, a court system and a military of some kind.
- Economic, social, cultural, moral and other responsibilities belong to the individual, and are therefore firmly part of civil society.
- Pronounced by free-market or classical economic theories.

ii. **Developmental States**

- A developmental state is one that intervenes in economic life with the specific purpose of promoting industrial growth and economic development.
- An attempt to construct a partnership between the state and major economic interests, often underpinned by conservative and nationalist priorities.

- The classic example of a developmental state is Japan - Meiji Period (1868–1912).
- Since 1945, the developmental role of the Japanese state has been assumed by the Japanese Ministry of International Trade and Industry (MITI), which, together with the Bank of Japan, helps to shape private investment decisions and steer the Japanese economy towards international competitiveness.
- France, Germany, and Austria – at some point followed developmental state.
- East Asian Tigers - The Seven Dragons - Hong Kong, Japan, Korea, Singapore, Thailand, Indonesia and Taiwan.

iii. Social Democratic (Welfare) States

- Whereas developmental states practice interventionism in order to stimulate economic progress, social-democratic states intervene with a view to bringing about broader social restructuring, usually in accordance with principles such as fairness, equality and social justice.
- There is a shift from a 'negative' view of the state, which sees it as little more than a necessary evil, to a positive view of the state, in which it is seen as a means of enlarging liberty and promoting justice.

- The ideal of both modern liberals and democratic socialists.
- The social-democratic state is an active participant - to rectify the imbalances and injustices of a market economy.
- Focus less upon the generation of wealth and more upon what is seen as the equitable or just distribution of wealth.
- An attempt to eradicate poverty and reduce social inequality.
- The twin features of a social democratic state are therefore Keynesianism and social welfare.
- Keynesian economic policies is to 'manage' or 'regulate' capitalism with a view to promoting growth and maintaining full employment.
- Welfare policies has led to the emergence of so called 'welfare states', whose responsibilities have extended to the promotion of social well-being amongst their citizens

iv. **Collectivized States**

- Bring the entirety of economic life under state control.
- USSR and throughout Eastern Europe
- Sought to abolish private enterprise altogether, and set up centrally planned economies administered by a network of economic ministries and planning committees.
- So-called 'command economies' were therefore established that were organized through a system of 'directive' planning that was ultimately controlled by the highest organs of the communist party.
- The justification for state collectivization stems from a fundamental socialist preference for common ownership over private property.
- The classical writings of Marx and Engels.

v. Totalitarian States

- Pronounces the most extreme and extensive form of interventionism.
- Argues for the construction of an all-embracing state, the influence of which penetrates every aspect of human existence.
- The state brings not only the economy, but also education, culture, religion, family life and so on under direct state control.
- Hitler's Germany, Stalin's USSR, Mussolini's Italy and Saddam Hussein's Iraq.
- The central pillars of such regimes are a comprehensive process of surveillance and terroristic policing, and a pervasive system of ideological manipulation and control.
- Totalitarian states effectively extinguish civil society and abolish the private sphere of life altogether.

vi. **Religious States**

- Since the 1980s has witnessed the rise of the religious state, driven by the tendency within religious fundamentalism to reject the public/private divide and to view religion as the basis of politics.
- Fundamentalist movements have typically looked to seize control of the state and to use it as an instrument of moral and spiritual regeneration.
- 'Islamization' introduced in Pakistan under General Zia-ul-Haq after 1978, the establishment of an 'Islamic state' in Iran as a result of the 1979 revolution,
- Sri Lankan state - Sinhala Buddhism

Understanding Government

- Government - include any **mechanism** through which ordered rule is maintained.
- Central features - ability to make collective decisions and the capacity to enforce them.
- Formal and institutional processes that operate at the national level to maintain public order and facilitate collective action.
- Organ - administers a country and main organization dealing with affairs of the whole country.
- Political organization comprising individuals and institutions authorized to formulate public policies and conduct affairs of state.

- Empowered to establish and regulate the interrelationships of the people within their territorial confines.
- Any government - stable and effective – possess : authority and legitimacy.
- **Authority -** ability to compel obedience - 'legitimate power.'
- Power - ability to influence the behavior of others, authority is the right to do so.
- Authority is the legitimacy, justification and right to exercise that power.
- **Legitimacy – (***legitimare*, meaning 'to declare lawful') - broadly means rightfulness.

- It confers on an order or commands an authoritative or binding character, thus transforming power in to authority.
- It is the popular acceptance of a governing regime or law as an authority.

Purposes and Functions of Government

- The main purpose of the state is to protect rights and to preserve justice.

- ✓ **Self-Preservation**
- ✓ **Distribution and Regulation of Resources**
- ✓ **Management of Conflicts**
- ✓ **Fulfillment of Social or Group Aspirations**
- ✓ **Protection of Rights of Citizens**
- ✓ **Protection of Property**
- ✓ **Implementations of Moral Conditions**
- ✓ **Provision of Goods and Services**

Understanding Citizenship

- Citizen - person who is a legal member of a particular State and one who owes allegiance to that State.
- A person entitled to whatever prerogatives and encumbered with responsibilities.
- Citizenship - the means by which we determine whether a person is legal member of a particular State or otherwise.
- Citizenship - denotes to the network of relationships between the State and the citizen.
- It's notion and the meaning attached to it changes with the change in political thoughts, ideologies, policies and government.

Theorizing Citizenship

Citizenship in Liberal Thought

- Begins with the individual person (the self).
- The self exists as the true symbol of liberal theory.
- Offers a strong emphasis to the individual liberty of the citizen, and rights that adhere to each and every person.
- Insist that individuals should be free to decide on their own conception of the good life.
- Individual citizens act rationally, corresponding to the constitutions and laws of the State, to advance their own interests.

- The individual is morally prior to the community.
- The community matters only because it contributes to the well-being of the individuals who compose it.
- Liberalists - individual person shapes all other social aggregations, including the state.
- Citizenship and other political institutions in a given State are means that are accepted only conditionally – foster the maximization of the citizen's preferences/benefits.
- The role of the **State** is to protect and create **convenient** environment to help citizens enjoy and exercise of their rights; the State has an **instrumental** function.

- There are three **fundamental** principles which a liberal government must provide and protect:

(1) equality - government has to treat individuals who are similarly situated in the same way and afford them the same rights;

(2) due process - government is required to treat individuals over whom it exercises power fairly; and

(3) mutual consent - membership in the political community rests on the consensual relationship between the individual and the state.

- Generally - bedrock - liberal theory of citizenship are: individuals are free to form their own opinions, pursue their own projects, and transact their own business untrammeled by the State's political agenda and coercive power.
- Citizenship **cannot** be defined based on **shared identity** or a **common culture.**

- This does **not imply** the **complete rejection** of **culture** and **identity** as such, but **identity** and **culture** are **not *a priori*** foundations for citizenship.
- **Critics – ?**

Citizenship in Communitarian Thought

- Emphasizes on the **importance** of **society** in articulating the good.
- The identity of citizens **cannot** be understood outside the **territory** in which they live, their **culture** and **traditions** - basis of its rules and procedures and legal policy is the shared **common good**.
- The **political subject** - belongs to a **community**, a community to which he/she owes **allegiance** and **loyalty**.
- Rather than **viewing** group practices as the product of **individual** choices, **communitarians** view **individuals** as the **product** of **social practices**.

- **Deny** that the **interests** of **communities** can be **reduced** to the interests of their **individual members**.
- Privileging individual autonomy is seen as **destructive** of communities.
- A **healthy community** maintains a **balance** between **individual choice** and protection of the **communal way of life** and seeks to limit the extent to which the former can erode the latter.
- The good of the community is **much above individual rights** and **citizenship** comes from the community identity, enabling people to participate.
- The State must provide a **policy** for the **common good**, according to the way of life of the community.
- Communitarians examine the ways **shared conceptions** of the good are formed, transmitted, justified and enforced.
- Critic - ?

- An individual's sense of identity is produced only through relations with others in the community that nourish him/her.
- An individual person cannot escape from the control of his/her culture
- The self/individuality is culturally constructed - socially-embedded.
- Individual interests, identity, freedom and equality can only be meaningfully practiced and realized through the prioritization of the common good.
- The two defining features of communitarian perspective are:

1- no individual is entirely self-created - citizen and his/her identity is - deeply constructed by the society where he/she is a member.

2- as a consequence of assimilation, a meaningful bond is said to occur between the individual person and his/her community.

Citizenship in Republican Thought

- Put emphasis on both individual and group rights.
- Attempts to incorporate the liberal notion of the self-interested individual within the communitarian framework of egalitarian and community belonging.
- Like communitarian thought, it emphasizes on what bind citizens together in to a particular community.
- Citizenship should be understood as a common civic identity, shaped by a common public culture.
- It requires citizens to bring together the facets of their individual lives as best they can and helps them to find unity in the midst of diversity.
- However, republicans don't pressurize individuals to surrender their particular identities like the communitarian thought.

- Instead, it is underpinned by a concern with individual obligation to participate in communal affairs.
- It encourages people to look for the common ground on which they stand, despite their differences, as citizens.
- In contrast to liberalism, individuals must overcome their personal inclinations and set aside their private interests when necessary to do what is best for the public.
- Republicans, thus, acknowledge the value of public life.
- Critic - no longer realistic - irredeemably nostalgic ideal in this age of globalization.
- The conception poses a threat to an open, egalitarian, and pluralistic society.

Multicultural Citizenship

- The ethnic revitalization movements demanding recognition of group rights as well as individual rights.
- The structural exclusion of racial, gender, ethnic, and language groups
- Increasing immigration throughout the world that made States multinational and polytechnic.
- They raise complex and divisive questions about how States can deal effectively with the problem of constructing civic communities that reflect and incorporate the diversity of citizens and yet have an overarching set of shared values, ideals, and goals to which all of the citizens of a State are committed.

*i) Taking **equality** of citizenship rights as a starting point.*

*ii) Recognizing that Formal equality of rights does **not necessarily** lead to equality of respect, resources, opportunities or welfare.*

*iii) Establishing mechanisms for **group representation** and participation.*

*iv) **Differential treatment** for people with different characteristics, needs and wants.*

- Critics - if groups are **encouraged** by the very terms of citizenship to turn inward and focus on their 'difference' (whether racial, ethnic, religious, sexual, and so on), then the hope of a **larger fraternity** of all people will have to be abandoned.
- Citizenship will cease to be a device to cultivate a sense of community and a common sense of purpose.
- **Nothing** will bind the **various groups** in society together and prevent the spread of **mutual trust**.
- It would create a "**politics of grievance**."

Modes/Ways of Acquiring and Loosing Citizenship

- Citizenship right was one of the rights **guaranteed** to individuals by the Universal Declaration of Human Rights adopted in 1948.
- According to Article 15 of the declaration, "**everyone has a right to a nationality" and that "no one shall be arbitrarily deprived of his nationality**."

Ways of Acquiring Citizenship

- There are two ways of acquiring citizenship :
- Citizenship by **birth** and citizenship through **naturalization/law.**

i) **Citizenship from birth/of Origin**: individuals can get citizenship status of a particular State either because he/she is **born** in the territorial administration of that or his/her mother and/or father are citizens of the State in question.

- There are two principles of citizenship from birth commonly known as ***Jus Soli*** (law/right of the soil) and ***Jus Sanguinis*** (law/right of blood).

i. *Jus Soli* is a principle whereby an **individual** is permitted to obtain citizenship status of a particular State because he/she was **born** in the **territorial administration** of that country.

ii. *Jus Sanguinis* is a norm where citizenship acquired claiming one's **parents citizenship** status.

- However, jus soli could not apply to **children** born from **diplomats** and **refugees** live in a **host State**.

ii) Citizenship by Naturalization/Law: is the **legal** process by which **foreigners** become **citizens** of **another country**.

- The common ways of acquiring citizenship through naturalization are the following.

✓ Political case (secession, merger and subjugation),

✓ grant on application, marriage,

✓ legitimatization/adoption, and reintegration/restoration.

- Citizenship by political case is a process by which an **individual person** acquires citizenship of a certain State following the **conquest** or **secession**

- **The Modes of Acquiring Ethiopian Citizenship (Reading Assignment)**

CHAPTER FIVE

Constitution, Democracy and Human Rights

Chapter Objectives

After the successful completion of this chapter, students will be able to:

- Recognize the definitions of Human Rights, constitution and democracy.
- Be aware of the nature and characteristics of Human Rights.
- Be familiar with the classifications and categories of Human Rights.
- Differentiate constitution from constitutionalism.
- Examine the classifications of constitution.
- Identify the roles of the actors of democratization.
- Learn about evolution and development of Human Rights and Democracy.
- **Understand** the **central values** and principles of democracy.

Constitution and Constitutionalism

Conceptualizing Constitution

- Constitution - Supreme law of the land - sets - structure of the state - lists the rights of citizens alongside the limits on the power exercise of a government.
- A collection of principles - powers of the government - rights of the governed - relation between the two are adjusted.
- Refers to body of rules and laws, (written or unwritten) - determine the organization of government and the distribution of powers.
- It is the mothers of all laws - all other ordinary laws are derived from and **subjected** to this blue print.
- Any other law contradicted with the provisions of the constitution becomes **void** or **invalid**.

Peculiar Features of Constitution

I. Generality

II. Permanency

III. Supremacy

IV. Codified document

V. Allocation of powers

Major Purposes and Functions of Constitution

I. It serves as a **framework** for Government

II. It **Limits** the Powers of Government

III. It **protects** individual and collective rights of citizens

IV. It serves as the **Supreme** (Highest) Law of a Country

V. It **provides** Government **legitimacy**/stability

VI. Constitution **Blue Prints** for establishing Values and Goals

Classification of Constitutions

- The **criteria**, **form**, **amendment** procedure and degree of **implementation/practic**e, constitutions can be classified into the following categories.

A. Constitution based on form

- Based on its form a constitution is either **written** and **unwritten**.

1. Written Constitution

- ✓ is one whose **provisions** **are written** in **detail**
- ✓ is one in which most of the provisions are embodied in a **single formal** written instrument or instruments

- is a work of a **conscious art** and the result of deliberate effort to lay down a body of **fundamental principles** under which a government is **organise**d and conducted.
- is a **formal document** - nature of the **constitutional settlement**, the rules that govern the political system and the rights of citizens and governments in a **codified form**.
- it exists in a **single document** containing the fundamental laws and principles specifying the rights of citizens, defines the political structure of a state and determines the distribution of government powers;
- it serves as a **supreme law** of the state
- India, Kenya, Ethiopia, USA, Germany, Brazil, Indonesia, Jordan, Venezuela and Nigeria have written form of constitution.

Merits of Written Constitution

- **Accessibility** - **monitor** the **behavior** of their government thus **preventing** the **emergency** of dictatorship
- Citizens - easily **learn** - rights and duties - the **basic laws** governing the patterns of **political processes** of their nation
- **Clarity** - and **definiteness** - the provisions are written in **detail**.
- **Stability**

Demerits of written constitution

- Rigidity - development of a conservative attitude.
- Written constitution is not easily adapted to a new situation or changing circumstances.

2. Unwritten Constitution

- the **fundamental** principles and powers of the government are not written down in any single **document.**
- is one whose written provisions are very brief - rules of the constitution exist in the form of usages and customs.
- It consists of customs, conventions, judicial decisions, traditions, and some written laws bearing different dates.
- The British constitution - best example.
- most of the prescriptions - never been reduced to writing and formally embodied in a document.

Merits of Unwritten Constitution

- Elasticity and adaptability.
- **Dynamic** - prevents the chances of popular uprisings.
- Absorb and also recover from shocks that may destroy a written constitution.

Demerits of Unwritten Constitution

- Not easily accessible to the public.
- Difficult to create awareness through education on the fundamental constitutional rights and duties of citizens.
- It leads to situations of instability.
- The provisions remains only in state of flux as per the emotions, passions and fancies of the people.
- It leads to the state of confusion.

B. Constitution based on complexity of amending process

- On the basis of the **distinction** in the process of **amendment**, constitutions may be classified as **rigid and flexible**.

1. Rigid Constitution

- The process of **amendment** is **difficult**.
- A **special procedure** is followed to make a **change** in any rule of the constitution.
- A constitutional amendment **bill** must be passed by the **parliament** by **special majority**.
- Then it is to be **approved** either by the **provincial** units or by the people in a **referendum** or both.
- A **referendum** is the **process** of **direct voting** by citizens to **support** or **rejects** at constitutional **amendment** or other major national issues.
- It **does not adapt** itself to changing circumstances immediately.
- Ethiopia, USA, Australia, Denmark and Switzerland

2. Flexible Constitution

- is the constitution which set up **simple amendment** procedure.
- is one that **adapts easily** and immediately to changing circumstances
- United Kingdom and New Zealand – examples.

C. Constitution based on degree of practice

- On the basis of the degree to which constitution of state observed in **practice**, or on the basis of the relationship between constitutional rules and laws and principles, on the one hand, and the **practice** of the government (the workings) of the constitution, on the other hand, we can have **effective and Nominal** Constitution of State.

1. **Effective Constitution:**

- Government/citizens practices **correspond** to the **provisions** of the constitution.
- Requires **not** a mere existence of constitutional rules and laws but also the **capacity** of those rules and laws to **constrain** or **limit** government behavior and activities, and establish **Constitutionalism**.

2. Nominal constitution:

- Accurately describes government'/citizens' limits yet in practice either or both **fail** to behave accordingly.
- The constitution only **remains** to have paper value or when there is **absence** of **constitutionalism.**
- It is not observed in **practice** but in **form.**

D. Based on the kind of state structure

- Based on the concentration powers at the **centre** or its **distribute** among the different branches and levels of government - **unitary and federal** constitution.

1. **Federal Constitution:**

- is one that **distributes** power among the different units of a state administration.
- Purely **classify** and **decentralize** power between the central government and regional/local units and such constitutions.

- Ethiopia, United States of America, Canada, Australia and Malaysiain – Examples.

2. Unitary Constitution

- The central government - **establish** or **abolish** the **lower levels** of government.
- Central government determine their composition, and their power and functions.
- In this case the **local government** has **no guarantee** for their existence.
- Powers and responsibilities are delegated to them by the **central government**.

Constitutionalism

- **Refers** to a doctrine that **governments** should be **faithful** to their constitutions because the rules and laws provided are all that can **protect** citizens' rights from arbitrary actions and decisions of the government
- Citizens and governments operate in accordance with the general rules and laws rather than **arbitrarily**.
- Hence, the essential elements for constitutionalism are constitution and its effective implementation.

- **Desires** a political order in which the powers of the government are **limited.**
- It is another name for the concept of a **limited** and **civilised government**.
- it is only in a **democratic** country that a constitutional government can be said to exist.
- A form of government can only be classified as **constitutional** when the rulers are subject to a body of rules and principles, which limits the exercise of their power.
- It does not merely require the **existence** of constitution.
- It **checks** whether the act of government is **legitimate** and whether officials conduct their public duties in accordance with laws pre-determined in advance.

Human Rights: Concepts and Theories

What Are Human Rights?

- Human rights are basic to **humanity.**
- They apply to all people everywhere.
- Fundamental entitlements belong to **every** member of the human race.
- These are privileges someone can claim just because he/she is a human being without any discrimination based on condition.
- The basic idea of human rights lies in people's recognition of the need to protect and affirm every other person's individual dignity.
- It is also common to call them '**natural' rights**, since they are natural entitlements to everyone.

- The Universal Declaration of Human Rights (UDHR, Article 2), stipulates that human rights belong to every human being "without distinction of any kind, such as race, color, sex, language, religion, political or other opinion, national or social origin, property, birth or other status" (Art. 2).
- Thus, the only criteria someone must fulfill to enjoy these rights is being a human.
- Human rights provide the minimum standards indispensable for people to live worth-living life.
- Human rights allow people to live the life they **deserved** to live, they aspire to live, and to live a life with dignity and equality.
- Human rights give people a **full control** of their life and the freedom to choose how they live, how they express themselves, and what kind of government they want to support, among many other things.

- Human rights also **guarantee people** the means necessary to satisfy their basic needs, such as food, housing, and education, so they can take full advantage of all opportunities.
- Finally, by **guaranteeing life, liberty, and security**, human rights protect people against abuse by individuals and groups who are more powerful.
- When we say human rights are **universal**, it is to show their worldwide applicability.
- This means all rights are expected to be applied equally everywhere, every-time and to everyone in this world.
- They **transcend** time, geographical and cultural disparities.
- Human rights are **inalienable**: means you cannot lose these rights any more than you can stop to be a human being.
- Human rights are **interdependent and interrelated** : means that all rights have equal weight/importance and it is not possible for one to fully enjoy any of his/her right without the others.

- The other important principle of human rights is the principle of **equality and non-discrimination** : pronounces that all individuals are equal as human beings and by virtue of the inherent dignity of each human person.

Categories of Human Rights

- Human rights cover virtually every area of human activity.
- They include civil and political rights, such as freedom of speech and freedom from torture.
- They also include economic and social rights, such as the rights to health and education.
- Some rights apply to individuals, such as the right to a fair trial: these are called individual rights.
- Others apply to groups of people, such as the right to a healthy environment or to native title: these are called collective rights.

- The common way of categorization is the one developed by **Karl Vasak** (1982) who have classified Human Rights into three: First, Second and Third generation rights.

Civil and Political Rights

- Civil and political rights are the **first generation** rights which uphold the sanctity of the individual before the law and guarantee his or her ability to **participate freely** in civil, economic, and political society.
- Civil rights include such rights as the right to **life, liberty** and personal **security**, equality before the law, protection from **arbitrary arrest** and the right to **religious freedom** and worship.
- Political rights include such rights as the right to **speech and expression**, **assembly** and **association**, **vote and political participation**.
- Political rights thus guarantee individual rights to involvement in public affairs and the affairs of state.

- All states, regardless of their economic, social, cultural and political developments or realities, are expected to **ensure** the realization of these rights immediately.
- **No precondition** could be **acceptable** for any violations of civil and political rights.
- The state, as a primary **duty bearer**, is expected here to let citizens enjoy their rights and freedoms and not intrude in their private life.
- Besides staying aside of the life of the rights holders, the state is also responsible to **protect** them from any potential interventions from other non-state actors; such as individuals, groups and organizations.
- Hence, protection is the main obligation of the duty bearers for civil and political rights.

Social and Economic Rights

- The **second generation** (social, economic, and cultural) rights are considered by many writers as an **aspirational and programmatic** set of rights that national governments ought to strive to achieve through progressive implementation.
- Social and economic rights include such rights as the right to **education, health** and **wellbeing**, **work and fair remuneration**, **form trade unions and free associations**, **leisure time, and the right to social security**.
- When protected, these rights help promote individual flourishing, social and economic development, and self-esteem.
- Cultural rights include such rights as the right to the benefits of **culture, indigenous land**, **rituals, and shared cultural practices**, and speak **one's own language** and 'mother tongue' education.

- Cultural rights are meant to maintain and promote sub-national cultural affiliations and collective identities, and **protect minority communities** against the incursions of national assimilationist and nation-building projects.

Peace, Development and Environmental Rights

- Third generation (solidarity) rights are aimed to **guarantee** that all individuals and groups have the right to **share** in the **benefits** of the **earth's natural resources**, as well as those goods and products that are made through processes of economic growth, expansion, and innovation.
- Many of these rights are **transnational** in nature - requires **redistribution** of wealth, resources from **developed to developing nations**.
- Solidarity rights also require **global cooperation** and **shared responsibility** to world peace, development and the environment.

- The third generation rights are still considered as an **emerging rights**, where the rights holders and duty bearers of the rights included under this category are **yet to be identified** clearly.

Derogations and Limitations on Human Rights

- **Limitations** are lawful infringements of rights.
- Limitations are **deviations** from the standard manner of dealing with rights imposed primarily to facilitate optimal use or exercise of rights in a context of scarce public resources, space and time.
- Limitations can take the form of **restrictions** and/or **derogation**.
- **Restrictions** are **acceptable or justifiable limits** of human rights during the normal times.
- Restrictions circumscribed the manner, or place, and the extent to which rights can be enjoyed or exercised in a particular set of circumstances, often in normal times.

- **Derogation** means a **temporary non-application** and **suspension** of rights by the state in **abnormal or emergency** (natural/artificial) situations.
- Enjoyment of human rights is subject to limitations and this limitations are normally found in **constitutional human rights** and **international human rights treaties**.
- But that limitation should **not be arbitrary**, it should be based on **legality**, necessity, rationality and proportionality supposed to be determined by the human rights law.
- Limitations may be made on the enjoyment of human rights for the sake of: **safeguarding of national security** or **public peace**; the **prevention of crimes**; the **protection of health**, **public morality**; the **protection of the rights and freedom of others**; and **safeguarding democratic institutions**

Non-derogability of Human Rights

- There are also certain unique and inherent human rights, which can never be suspended under any circumstances.
- They are: right against arbitrary deprivation of life (art. 6); freedom from torture or cruel, inhuman and degrading treatment or punishment; and freedom from medical or scientific experimentation without consent (art. 7); freedom from slavery and servitude (art. 8); freedom from imprisonment for inability to fulfill a contractual obligation (art. 11); prohibition against the retrospective operation of criminal laws (art. 15); right to recognition before the law (art. 16); and freedom of thought, conscience and religion (art. 18)